

Tamil Nadu Revision of Tariff Rates on Supply of Electrical Energy Act, 1978

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State of Tamilnadu- Act

Tamil Nadu Revision of Tariff Rates on Supply of Electrical Energy Act, 1978

TAMILNADU

India

Tamil Nadu Revision of Tariff Rates on Supply of Electrical Energy Act, 1978

Act 1 of 1979

Published on 23 February 1979

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Tamil Nadu Revision of Tariff Rates on Supply of Electrical Energy Act, 1978

(Tamil Nadu Act

No. 1 of 1979

)

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An Act to provide for the revision of tariff rates leviable on electrical energy supplied in this State by the Tamil Nadu Electricity Board

Be it enacted by the Legislature of the State of Tamil Nadu in the Twenty-ninth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Revision of Tariff Rates on Supply of Electrical Energy Act, 1978.

(2)

It shall be deemed to have come into force on the 1st day of March, 1978.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Statutory order" means the order for the levy of revised tariffs and the conditions of supply of electrical energy by the Tamil Nadu Electricity Board made under section 3 of the Tamil Nadu Essential Articles Control and Requisitioning (Temporary Powers) Act, 1949 (Tamil Nadu Act XXIX of 1949) and published in Notification No. II(2)/PWE/4329(e)/74 in Part II Section 2 of the Tamil Nadu Government Gazette (Extraordinary), dated the 9th October, 1974 and includes any amendment made to the said order for the time being in force;

(b)

"tariff" means the rate of tariff leviable upon the consumption of any electrical energy in this State supplied by the Tamil Nadu Electricity Board and as specified in the Schedule to this Act;

(c)

the words and expressions used and not denned in this Act but defined in the Tamil Nadu Essential Articles Control and Requisitioning (Temporary Powers) Act, 1949 (Tamil Nadu Act XXIX of 1949) or in the statutory order shall have the meanings respectively assigned to them in the said Act or in the said statutory order.

3.

Tariff rates for consumption of electrical energy.

- Notwithstanding anything contained in the Tamil Nadu Essential Articles Control and Requisitioning (Temporary Powers) Act, 1949 (Tamil Nadu Act XXIX of 1949), the tariff rates payable to the Tamil Nadu Electricity Board by any consumer on the electrical energy supplied by the Board shall be as specified in the Schedule to this Act.

4.

Power of the State Government to amend the Schedule.

- The State Government may, after taking into account the cost of production of energy, and such other matters as may be prescribed, by notification, amend the provisions of the Schedule to this Act.

5.

Repeal.

(1)

The statutory order in so far as it relates to tariff rates on supply of electrical energy for agricultural and non-agricultural purpose is hereby repealed.

(2)

The provisions of the Tamil Nadu General Clauses Act, 1891 (Tamil Nadu Act I of 1891), shall apply to the repeal of the said statutory order, as they apply to the repeal of a Tamil Nadu Act.

The Schedule

(See section 3)

Part A-High Tension Supply

High Tension Tariff -I:

Industrial Establishments, Registered Factories,

Tea Estates, Textiles, Railway Traction, Caustic Soda, Calcium

Carbide, Aluminium and Fertilisers.

Rate per KWH.

Rate per KVA of maximum demand per month.

(in paise)

(in rupees)

(1)

(2)

Madras Metropolitan Area

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?.

38

30

Non-Metropolitan Area

?.

?.

?.

33

30

Tariff concessions for High Tension Industries

coming under the High Tension Tariff-I:-

(i)(a) In the case of New High Tension

Industries, the following concessional tariffs shall be charged

for the first five years after the commencement of production:

For the first three years

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66 $\frac{2}{3}$ per cent of the High Tension Rates.

For the fourth year

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80 per cent of the High Tension Rates.

For the fifth year

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90 per cent of the High Tension Rates.

For the sixth year

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Full tariff.

The above concession shall apply to both unit rates and maximum demand charges. This concession shall not, however, be applicable to a consumer who utilises power from his own generating units or makes other arrangements for production purposes and utilises the power supplied by the Board for auxiliary purposes only. The above concessions shall not apply from the year when the Industry starts earning profits.

Explanation 1. - This tariff concession is applicable only once to a consumer for a new industrial undertaking and will not be available for any subsequent expansion or diversification of production.

Explanation 2. - If a consumer starts a branch mill for manufacture of the same products, the branch mill is not eligible for the concession:

Provided that in the area comprising the satellite town of Maraimalai Nagar, New Town, developed by the Madras Metropolitan Development Authority, a consumer will be eligible for the concession once irrespective of whether he has availed of it outside Maraimalai Nagar earlier or whether he would be otherwise considered a branch mill under Explanation 2.

(i)

(b)

New Industries, which work night shift and existing industries which newly introduce night shift (i.e.) between 9-30 p.m. of a day and 5-30 a.m. of the next day, will be given a further concession as indicated below:-

Explanation. - For the purpose of this clause, "existing industries" mean an industry which has not completed five years from the date of commencement of production and which is still eligible to the concessional tariff rate.

Forty per cent of the appropriate rate for energy only consumed during night shift for a period of five years during the seven months from July to January:

Provided that in respect of those having one day shift, the night shift concession will stand reduced from forty per cent to twenty per cent:

Provided further that in respect of those having two day shifts no night shift concession will be available.

This concession shall apply to energy rate arrived at after giving the concession referred to in item (i)(a) for New Industries.

(i)

(c)

New Industries in and around Mettur Township which avail of power only during the irrigation season, i.e., from 15th July to 15th January shall be given a tariff reduction of twenty-five per cent. This concession shall be in addition to the other concessions applicable to the New Industries mentioned in items (i)(a) and (b) above. If such industries take power during non-irrigation season, this concession shall not be applicable.

(i)

(d)

New Industries to be set up in industrially under developed areas notified as such by the Government will be given a reduction of fifteen per cent of the tariff for the first five years from the date of commencement of production. This will be over and above the concessions to New Industries specified in items (i)(a) and (b) above.

(ii)

In all cases of High Tension Supply under High Tension Tariff-I the connected load under lighting and other non-industrial purposes including appliances but not for resale must not exceed the prescribed limit as detailed in items (iv) and (v) below. If any excess under lighting and non-industrial load cannot be segregated or brought within the prescribed limit then the whole consumption in the service shall be charged under High Tension Tariff VII.

(iii)

The New Industries to be set up in the Madras Metropolitan Area shall not be eligible for any tariff concessions.

(iv)

In all contracts, for power supply at High Tension Tariff-I, the connected load under lighting and other non-industrial purposes including appliances but not for resale must not exceed the following prescribed limits:-

For approved demand upto 1,000 KVA

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...

15 per cent.

1,001 KVA to 2,500 KVA

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150 KVA or 10 per cent whichever is higher.

2,501 KVA to 5,000 KVA

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200 KVA or 8 per cent whichever is higher.

Above 5,000 KVA

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400 KVA or 5 per cent (subject to a maximum limit of 1,000 KVA).

A separate meter shall be installed for this purpose. If the load is within the prescribed limit, the consumption in the service shall be charged at High Tension Tariff-I. Any excess load above the prescribed limit shall be charged under High Tension Tariff-VII. The consumer shall utilize the energy for lighting and non-industrial purposes solely for bona fide purposes of the factory and its industrial activities. The Chief Engineer shall be the final authority in deciding the bona-fide nature of these purposes. In the case of supply under High Tension Tariff-I, the usage of electricity for bonafide purposes of lighting, heating and power loads in the residential quarters within the factory or estate premises shall be metered separately by the consumer, taking High Tension Supply and paid for to the Board at Low Tension Tariff-I. The units so metered shall be deducted from the total number of units registered in the main meter of the High Tension Supply for billing purposes.

(v)

If a consumer availing High Tension Supply under this tariff does not, for any reasons, utilise the power load for more than thirty days, then the energy utilised in the service for lighting and non-industrial purposes shall be billed under High Tension Tariff-VII.

High Tension Tariff II:

Recognised Educational Institutions, Hostels run by recognised Educational Institutions, Government Hospitals, actual places of public worship, Orphanages, Public Libraries, Water works, Public lighting and such other Institutions declared by the Government from time to time.

Rate per KWH (in paise)

Rate per KVA of maximum demand per month(in rupees)

(1)

(2)

Madras Metropolitan Area

?

38

30

Non-Metropolitan area

...

33

30

High Tension Tariff III:

Licensees

Madras Metropolitan Area

?

38

30

Non-Metropolitan area

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33

30

High Tension Tariff IV:

Rate per KWH (in paise)

Lift Irrigation Co-operative Societies for Agriculture

15

High Tension Tariff V:

Supply to Salem Steel Plant, Heavy Water Plant and Madras Atomic Power Project shall be charged at Supply End cost.

High Tension Tariff VI:

Supply to Pondicherry State shall be at the rate charged by Neyveli Lignite Corporation to the Tamil Nadu Electricity Board PLUS ONE PAISE per KWH as wheeling charges.

High Tension Tariff VII:

All categories of consumers not covered under High Tension Tariffs I, II, III, IV, V and VI.

Rate per KWH (in paise)

Rate per KVA of maximum demand per month (in rupees)

(1)

(2)

Madras Metropolitan Area

?

42

35

Non-Metropolitan area

...

37

35

Provided that the Industries requiring High Tension Supply during the construction period will be charged under this Tariff.

General provisions applicable to consumers covered under High Tension Tariffs I to VII

High tension consumers availing a maximum demand above 5,000 KVA (Plus 2 per cent marginal adjustment) should avail extra high tension supply within six months if the above limit of 5,000 KVA is exceeded by sanction. In case, the consumer, whose sanctioned demand so exceeds the above limit of 5,000 KVA does not avail extra high tension supply in place of high tension supply, the consumer shall be charged an extra levy of three paise per KWH (over and above the normal tariff) for the entire energy consumed.

Part B ? Low Tension Supply

I. Domestic Purposes:

For lights and fans including radios and power loads-45 paise per KWH.

Minimum monthly current consumption charges-Rs. 4 per service.

This tariff is restricted to services which are exclusively domestic, to Handlooms in residences of Handloom weavers (regardless of the fact whether outside labour is employed or not) and to Handlooms in Sheds erected where energy is availed of for only lighting purposes.

II. Public Lighting. - For Public Lighting

(i)

Metered Supply

-37 paise per KWH

Minimum monthly current consumption charges

-Rs. 5 per service

(ii)

Unmetered Supply:-

Filament Lamps

Rate per lamp per month (in rupees)

25 Watts Lamp

2.00

40 Watts Lamp

3.00

60 Watts Lamp

4.00

100 Watts Lamp

6.00

For lamps of higher wattages, proportionate charges based on the rate for 100 watts lamps shall be levied.

Mercury Vapour Lamps

Rate per lamp per month, (in rupees)

80 Watts Lamp

15.00

100 Watts Lamp

17.00

125 Watts Lamp

18.00

200 Watts Lamp

25.00

250 Watts Lamp

28.00

400 Watts Lamp

35.00

Flourescent Tube Lights

Rate per lamp per month (in rupees)

One 20 Watts Lamp

4.00

Two numbers 20 Watts twin type lamps or one 40 Watts.

6.00

Two numbers 40 Watts twin type lamps or one 80 Watts Lamp

10.00

For lamps of higher wattage, proportionate charges based on the rate for two 40 Watts (twin type) lamps shall be levied.

Cut-Off and Semi-Cut off Mercury Vapour Lamps

Rupees

80 Watts Lamp

20.00

250 Watts Lamp

37.00

Central Excise Surcharge at 3 paise per KWH will be levied on consumption in respect of unmetered supply.

Explanation. - The number of burning hours shall be decided from time to time in consultation with the local authority but shall not exceed 200 hours per month or 2,400 hours per annum.

III. Public Water Supply Systems:

Rate per KWH (in paise)

Madras Metropolitan Area

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?

?

35

Non-Metropolitan Area

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?

?

30

Minimum monthly current consumption charges Rs.

5 per service.

IV. Power Loads:

(Industrial and Non-Industrial including Factory Lighting)

Rate per KWH (in

paise)

Madras Metropolitan Area

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?

55

Non-Metropolitan Area

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50

Minimum monthly current consumption charges of Rs.

10 per 750 watts of contracted load.

Fractions of 750 Watts will be reckoned, as

750 Watts for purposes of this minimum.

Explanation (i). - For supply to welding Jets, this rate will be increased by 20 per cent.

Explanation (ii). - The connected load under lighting and other non-industrial purposes connected with the factory within the factory premises must not exceed 15 per cent of that for power and heating. Where the connected load for lighting and other non-industrial purposes as indicated above exceeds the permissible limit of 15 per cent then separate meter shall be provided for this non-industrial load and consumption by this load shall be charged under Low Tension Tariff-VIII.

V. Agriculture and Cottage Industries:

Rate per KWH (in paise)

(a) Small Farmers

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?

?

12

(b) Big Farmers and Cottage Industries

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?

15

Minimum monthly current consumption charges Rs.

5 per service.

?

?

Explanation (i). - "Small Farmer" means a person whose total holding whether as owner, tenant or mortgagee with possession, or partly in one capacity and partly in another does not exceed two and half acres of wet lands or five acres of dry lands. In computing the extent of land held by a person who holds both wet and dry lands, two acres of dry land shall be taken to be equivalent to one acre of wet land.

Explanation (ii). - Agricultural consumers will be permitted lighting upto 50 watts per 1,000 watts of motive power

connected subject to a maximum of 150 watts inclusive of wattage of Pilot lamps, each of which should not exceed 15 watts and with not more than 3 lamps (excluding Pilot lamps) for lighting the farm or the field around the pumpset. Energy used for radios and other appliances including domestic lighting in farm houses shall be metered separately and charged for at the appropriate tariff.

Explanation (iii). - In the case of permissible lighting load connected to the unmetered phase in agricultural service, Rs. 2 per month per 40 watts lamps (ordinary lamp) will be charged.

Explanation (iv). - Extra lighting in agricultural services over the permissible limit will be charged for, either if separately metered as per Low Tension Tariff VIII, or if not separately metered, on a flat rate of Rs. 2 per 40 Watts lamp (ordinary). Larger lamps in proportion. If Flourescent/Mercury Vapour lamps are connected, the rates will be enhanced as laid down under Low Tension Tariff II.

Explanation (v). - Cottage Industries to be eligible for this tariff shall ordinarily, not have a connected horse power exceeding 5. This limit may, however, be relaxed by the Chief Engineer for special reasons to be recorded in writing.

VI. Huts in Village Panchayats:

For huts in village Panchayats Rs. 2.50 per lamp per month.

Explanation (i). - A hut will be defined as a living place not exceeding 200 square feet area with mud wall and thatched roof.

Explanation (ii). - Only a single light not exceeding 40 watts be permitted per hut.

VII Recognized Educational Institutions, Hostels run by recognized Educational Institutions, Government Hospitals, actual places of public worship, Orphanages, Public Libraries, Chief Minister's Nutritious Noon-meal Centres and such other institutions declared by the Government

Rate per KWH (in
paise)

Madras Metropolitan Area

?

?

?

?

83

Non-Metropolitan Area

?

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?

?

78

Minimum monthly current consumption charges Rs.

10 per service.

VIII. All categories of consumers not covered under Low Tension Tariffs I to VII:

Rate per KWH (in
paise)

Madras Metropolitan Area

?

?

?

?

87

Non-Metropolitan Area

?

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?

?

72

Minimum monthly current consumption charges Rs.
10 per service.

PART C

(1) Temporary Supply

Rate.

Minimum.

(1)

(2)

(a) Lighting or combined installation of lights
and fans mixed load of lights and power exhibition.

Low Tension VIII plus 25 per cent.

Rs. 5 per horse power for 30 days or part
thereof.

(b) Motive power/heating.

Low Tension Tariff IV plus 25 per cent.

Rs. 10 per horse power connected for the first
30 days or part thereof Rs. 5 per horse power connected for each
of the next 15 days or part thereof.

(c) Agriculture..

Low Tension Tariff V plus 25 per cent.

Rs. 5 per horse power for 30 days or part
thereof.

(2) Lavish Illumination

"Rs. 2 per KWH.

Explanation. - The rate for lavish illumination shall apply to weddings, garden parties and other private functions where the illumination is obtained through bulbs fastened in outer surfaces of walls of buildings, on trees and poles inside the compound and in pandals outside the main building. All other cases of illuminations obtained through bulbs fastened on outer surfaces of walls of buildings, on trees and poles inside the compound and in pandals outside the main building shall be charged as for temporary supply.

Part D ? General

The above tariffs shall be read with the general terms and conditions of supply prescribed by the Tamil Nadu Electricity Board from time to time.

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